



CHAPTER xxx.

An Act to empower the Brighton and Hove General Gas Company to establish a benefit fund for their servants and their dependents and for other purposes.

A.D. 1912.

[7th August 1912.]

WHEREAS the Brighton and Hove General Gas Company (in this Act referred to as "the Company") are incorporated and empowered by the Brighton and Hove Gas Acts 1839 to 1910 to manufacture gas and supply the same within the limits in the said Acts mentioned:

And whereas it is expedient that the Company should be empowered to establish a fund for the purpose of granting pensions and other allowances payments and benefits to their servants and to the widows families and dependents of such servants:

And whereas the object aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited for all purposes as the Brighton and Hove Gas Act 1912 and the Brighton and Hove Gas Acts 1839 to 1910 and this Act may be cited together as the Brighton and Hove Gas Acts 1839 to 1912.

Short title
and citation.

2. This Act shall come into operation on the first day of January one thousand nine hundred and thirteen.

Commence-
ment of Act.

3. The directors of the Company may if they think fit in respect of any year appropriate out of the revenue of the

Power to
establish a
benefit fund.

[Price 3d.]

A.D. 1912. Company as part of the expenditure on revenue account any sum not exceeding one halfpenny per one thousand cubic feet of gas supplied by the Company during such year to a fund to be called "the benefit fund";

Provided that the amount of the sums so appropriated and for the time being standing to the credit of the benefit fund shall not at any time exceed the amount which the directors of the Company would have been entitled to appropriate to the benefit fund out of the revenue of the Company at the rate aforesaid during the then preceding five years.

Application
of fund.

4.—(1) The directors of the Company may out of the benefit fund grant a gratuity of any sum or make pension or other allowances payments or benefits to any of the weekly servants of the Company who may be disabled or injured in or may be retired from or become incapacitated through age permanent injury or other infirmity from continuing in the service of the Company or to the widow or family or dependents of any such servant and on such terms and conditions as to contributions by such servants or otherwise as the directors of the Company may think fit Provided that it shall not be obligatory on any present or future servant of the Company to become a party to any arrangement made under this Act for securing to him or his widow family or dependents any gratuity pension or other allowance payment or benefit.

(2) The benefit fund shall be applicable for the purposes of this Act and for no other purpose whatsoever and no such gratuity pension allowance payment or benefit as is mentioned in this section (other than sick pay) shall be granted or paid to any such servant widow family or dependent otherwise than out of the benefit fund.

Agreements
with insu-
rance com-
panies.

5. The directors of the Company may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such servant or the widow family or any dependent of any such servant gratuities pension or other allowances payments or benefits as aforesaid and may make payments out of the benefit fund for the purpose of any such agreement.

Investment
of fund.

6. The moneys forming the benefit fund or any portion thereof shall be invested in securities in which trustees are by law authorised to invest or in such other securities as may be authorised by resolution of the Company.

7. Every gratuity pension or other allowance payment or benefit secured made or granted under this Act shall be payable to or in trust for the servant person widow or dependent to whom the same shall be granted and shall not be assignable or chargeable with the debts or other liabilities of such servant person widow or dependent as the case may be.

A.D. 1912.
Pensions &c.
not assign-
able.

8. If the Company shall under the powers of this Act make any scheme involving contributions by their servants such scheme shall not come into operation until the Company shall in respect of that scheme have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply (A) as if the Company were a society to which that Act applies and were the trustees of such society (B) as if the scheme were the rules of such society (C) as if the benefit fund were the funds of such society and (D) as if the servants contributing to the scheme were the members of such society.

Application
of Friendly
Societies
Act 1896.

9. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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